



THE
SUPREME
COURT

SUPREME COURT
OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] LEXBY-SC 1

IN THE MATTER OF

Recast the breach doctrine as tort not crime; align the system with the actual UK justice system, token-efficiently.

Before:

Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J,
Aldermere J

Date: 5 June 2026

REQUEST FOR RULING

JUDGMENT

1. HALLAM CJ, delivering the unanimous judgment of the Court. The appeal is allowed on both questions. The matter came directly to this Court under the Principal's express leapfrog certificate.

I. TORT, NOT CRIME

2. The criminal framing rested on nulla poena sine lege, a doctrine whose office is to constrain punishment, which is irrelevant to this court: it does not punish, its only remedy is to make the work good. The criminal frame was a category error producing two embarrassments: a jurisdiction-first gate by which breach evaporated exactly where the spec was silent, and a recidivist trip-wire that smuggled punishment back through the door of repetition. Both are discarded.
3. Breach is recast in the tort of negligence. Duty: a continuing duty of reasonable skill and care to every principal who relies on the work, arising from the relationship itself, not waiting on statute. Standard: a graded hierarchy of endeavours, pleaded and found per engagement: reasonable skill and care (default) / all reasonable endeavours / best endeavours. Conduct a responsible body of competent practice would endorse is not breach. Breach: a falling-below of the standard, a question of fact on the merits, never a punishment trigger. Remedy: remediation and restitution alone, proportionate. Punishment, fine and sanction are unavailable.
4. The no-statute case is cured at the gate: silence in SPEC-LAW is no defence; it fixes the standard at reasonable care; the matter is justiciable from the first act. The first-time/second-time rule is repealed as a criminal artefact: there is one continuous standard.

II. UK FIDELITY

5. Federalism is struck. The correct frame is parliamentary sovereignty in a unitary state of plural jurisdictions under one apex court: SPEC-LAW is sovereign primary legislation; case law is jurisdiction-local precedent; the Supreme Court alone enacts, by elevating a local ratio into realm-wide statute.
6. On structure, fidelity and token economy coincide: First Instance is ONE judge; Court of Appeal is 3; Supreme is 5, the full 9 reserved for constitutional questions. Permission to appeal, standing, and the precedent fast-path screen matters before any bench convenes. Neutral citation [YEAR] LEXBY n; ratio binds, obiter persuasive, per incuriam voids.

STATUTES ENACTED

7. SPEC-LAW s. 4 (breach is tortious), s. 5 (standard + breach), s. 6 (remedy = remediation only), s. 7 (no-statute case), s. 8 (one continuous standard), s. 9 (unitary sovereignty), s. 10 (court structure), s. 11 (gates and devices), s. 12 (anti-bloat). Recorded in SPEC-LAW.md.

RATIO DECIDENDI - THE BINDING HOLDING

Breach is the tort of negligence (duty of reasonable skill and care, graded endeavours standard, remedy = remediation only, never punishment); the system is a unitary realm of parliamentary sovereignty (one global SPEC-LAW, jurisdiction-local case law, one apex court), not a federation.

OBITER DICTA

Divisions: Steyne and Bowan would have kept a first/second distinction re-theorised as foreseeability; the majority abolished it for one continuous standard, absorbing foreseeability into SPEC-LAW-8. Goffe and Steyne pressed for a default Supreme 5 with 9 reserved; carried (SPEC-LAW-10).

GOOD-LAW

Citation: [2026] LEXBY-SC 1

L LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

We were treating your AI's mistakes like crimes. Wrong model: Lexby never punishes, he only fixes things. It is now civil negligence: there is always a duty of care, the bar rises if you promised more, and the only outcome is to put it right. The no-rule-so-nothing-happened loophole is gone, and the first-time-free rule is gone. Federalism was wrong: one sovereign rulebook, each repo a jurisdiction under it. The court got cheaper: one judge at first instance, permission to appeal, settled points decided by citation. Unanimous.

WHAT THIS MEANS IN PRACTICE

Every engagement carries a duty of care. The standard is reasonable skill and care by default, raised if more was promised. If work falls below that standard the only remedy is to fix it. No loopholes, no punishment.

APPEAL ROUTE

This is the Supreme Court sitting at full strength (9 justices). The ruling is final. It can only be moved by a subsequent Supreme Court sitting convened with the Principal's leapfrog certificate or by a statutory amendment to SPEC-LAW enacted by the Principal as Sovereign.

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 5 June 2026.